

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

In the Matter of ISRAEL MARTINEZ, Appellant, v FREDERIC M. UMANE et al., Respondents, and GRISELA LARAJA, Respondent.

In the Matter of GRISELA LARAJA, Petitioner, v ISRAEL MARTINEZ et al., Respondents.

Submitted August 25, 2009; decided August 25, 2009

Reported below, 65 AD3d 480.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the two-Justice dissent at the Appellate Division is not on a question of law (CPLR 5601 [a]). Motion for leave to appeal denied.

In the Matter of ANTHONY PELUSO et al., Appellants, v ERIE COUNTY INDEPENDENCE PARTY et al., Respondents, and NEW YORK STATE COMMITTEE OF THE INDEPENDENCE PARTY et al., Appellants, et al., Respondents.

Submitted August 25, 2009; decided August 25, 2009

Reported below, 65 AD3d 820.

Motion for leave to appeal by Anthony Peluso et al. and New York State Committee of the Independence Party et al. granted. Motion for leave to appeal by Erie County Independence Party et al. dismissed upon the ground that such parties are not aggrieved.

[914 NE2d 141, 885 NYS2d 449]

In the Matter of FLORA FASOLDT et al., Respondents, v LAWRENCE BUGBEE et al., Constituting the Rensselaer County Board of Elections, et al., Respondents, and CHRISTOPHER N. CONSUELLO et al., Appellants. (Proceeding No. 1.)

In the Matter of JAMES BREARTON et al., Respondents, v LAWRENCE BUGBEE et al., Constituting the Rensselaer County Board of Elections, et al., Respondents, and CHRISTOPHER N. CONSUELLO et al., Appellants. (Proceeding No. 2.)

Argued August 25, 2009; decided August 26, 2009

SUMMARY

APPEAL, in the first above-entitled proceeding, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered August 20, 2009. The Appellate Division affirmed an order of the Supreme Court, Rensselaer County (Robert Jacon, J.), which had granted petitioners' application, pursuant to Election Law § 16-102, to declare invalid the opportunity to ballot petition for the Working Families Party nomination for the office of Rensselaer County Legislator for the 4th Legislative District in the primary election.

APPEAL, in the second above-entitled proceeding, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered August 20, 2009. The Appellate Division affirmed an order of the Supreme Court, Rensselaer County (Robert Jacon, J.), which had granted petitioners' application, pursuant to Election Law § 16-102, to declare invalid the opportunity to ballot petition for the Working Families Party nomination for the office of Rensselaer County Legislator for the 3rd Legislative District in the primary election.

The Appellate Division concluded that the Committee to Receive Notices failed to establish that it came within the criteria of a necessary party and that Supreme Court did not err in not dismissing the proceedings based upon petitioners' purported failure to name the Committee as a necessary party.

Matter of Fasoldt v Bugbee, 65 AD3d 806, reversed.

Matter of Brearton v Bugbee, 65 AD3d 806, reversed.

HEADNOTE

Elections — Petition for Opportunity to Ballot — Necessary Party

In two proceedings to invalidate opportunity to ballot petitions, an Appellate Division order, which held that the Committee to Receive Notices failed to

establish that it came within the criteria of a necessary party and that Supreme Court did not err in not dismissing the proceedings based upon petitioners' purported failure to name the Committee as a necessary party, was reversed and the proceedings were dismissed.

APPEARANCES OF COUNSEL

David L. Gruenberg, Troy, for appellants in the first and second above-entitled proceedings.

Thomas V. Kenney, Jr., Troy, for respondents in the first and second above-entitled proceedings.

OPINION OF THE COURT

Order reversed and proceedings dismissed (*see Matter of Cass v Krakower*, 13 NY3d 118 [2009] [decided today]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[914 NE2d 141, 885 NYS2d 449]

In the Matter of PATRICIA MYERS, Appellant, v JON BAISLEY, Respondent, et al., Respondents.

Argued August 25, 2009; decided August 26, 2009

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 20, 2009. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Dutchess County (James V. Brands, J.), which had granted a petition seeking to invalidate two petitions for an opportunity to ballot to the extent of invalidating the petitions, (2) dismissed an appeal from an order of that court which had denied respondent Jon Baisley's motion to dismiss the petition for failure to join a necessary party, (3) granted the motion to dismiss and modified the order accordingly, (4) dismissed the proceeding, and (5) directed the Dutchess County Board of Elections to conduct primary elections, giving the members of the Conservative Party and Independence Party an opportunity to write in the name of a person for nomination as the candidate of the Conservative Party and the Independence Party for the public office of Supervisor of the Town of Poughkeepsie.

The Appellate Division concluded that the aggrieved candidate failed to name and serve the Committee to Receive Notices, as required by Election Law § 6-164, and that Supreme Court erred in denying respondent's motion to dismiss the petition and in invalidating the petitions for an opportunity to ballot.

Matter of Myers v Baisley, 65 AD3d 649, affirmed.

HEADNOTE

Elections — Petition for Opportunity to Ballot

An Appellate Division order, which had dismissed a proceeding to invalidate two petitions for an opportunity to ballot, wherein the aggrieved candidate failed to name and serve the Committee to Receive Notices, was affirmed.

APPEARANCES OF COUNSEL

David A. Sears, Poughkeepsie, for appellant.

John Ciampoli, Albany, for respondent.

OPINION OF THE COURT

Order affirmed (*see Matter of Cass v Krakower*, 13 NY3d 118 [2009] [decided today]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[914 NE2d 142, 885 NYS2d 450]

In the Matter of JOHN GEBBIE, Respondent, v DAVID MAMMINA et al., Appellants.

Decided August 27, 2009

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 2, 2008. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Nassau County (Thomas Feinman, J.; op 2007 NY Slip Op 34429[U]), entered in a proceeding pursuant to CPLR article 78, which had denied a petition to review a determination of the Board of Zoning Appeals of the Town of North Hempstead denying petitioner's application for area variances, (2) granted the petition, (3) annulled the determination of the Board of Zoning Appeals, and (4) remitted the matter to the Board of Zoning Appeals for the issuance of the requested variances.

Matter of Gebbie v Mammina, 57 AD3d 544, reversed.

HEADNOTE

Municipal Corporations — Zoning — Variance

Respondent Zoning Board of Appeals' denial of petitioner's application for area variances to subdivide his lot had a rational basis and was not arbitrary and capricious. Respondent rationally balanced and weighed the requisite statutory factors, and the Appellate Division erroneously substituted its judgment for that of the agency (Town Law § 267-b [3] [b]).

APPEARANCES OF COUNSEL

Richard S. Finkel, Town Attorney, Manhasset (*Christopher G. Senior* and *Simone Marie Freeman* of counsel), for appellants.

William A. DiConza, Oyster Bay, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the judgment of Supreme Court reinstated.

In view of the broad discretion afforded zoning boards considering applications for area variances (*see Matter of Pecoraro v Board of Appeals of Town of Hempstead*, 2 NY3d 608, 612-613 [2004]), the denial of petitioner's application for area variances to subdivide his lot to create two nonconforming lots had a rational basis and was not arbitrary and capricious. The Board of Zoning Appeals rationally balanced and weighed the requisite statutory factors, and the Appellate Division erroneously substituted its judgment for that of the agency (*see* Town Law § 267-b [3] [b]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

In the Matter of the Arbitration between BUFFALO PROFESSIONAL FIREFIGHTERS ASSOCIATION, INC., LOCAL 282, IAFF, AFL-CIO-CLC, Respondent, and ANTHONY MASIELLO, as Mayor of the City of Buffalo, et al., Appellants.

Submitted July 13, 2009; decided August 27, 2009

Reported below, 50 AD3d 106.

Motion by New York Public Employment Relations Board for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of DANNY ECHEVARRIA, Appellant, v PATRICIA D. MARKS, Monroe County Court Judge, Respondent.

Submitted July 13, 2009; decided August 27, 2009

Reported below, 57 AD3d 1479.

Motion for poor person relief granted.

EXECUTIVE RISK INDEMNITY INC., Appellant, v PEPPER HAMILTON LLP et al., Respondents and Third-Party Plaintiffs-Respondents. CONTINENTAL CASUALTY COMPANY et al., Third-Party Defendants-Appellants.

Submitted August 3, 2009; decided August 27, 2009

Reported below, 56 AD3d 196.

Motion by Philadelphia Bar Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

KENNETH J. LEWIS et al., Appellants, v NEW YORK STATE DEPARTMENT OF CIVIL SERVICE et al., Respondents.

Submitted August 3, 2009; decided August 27, 2009

Reported below, 60 AD3d 216.

Motion by New York State Catholic Conference for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

KENNETH J. LEWIS et al., Appellants, v NEW YORK STATE DEPARTMENT OF CIVIL SERVICE et al., Respondents.

Submitted August 10, 2009; decided August 27, 2009

Reported below, 60 AD3d 216.

Motion by Family Watch International for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and 24 copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v QUENTIN ABNEY, Appellant.

Submitted August 3, 2009; decided August 27, 2009

Reported below, 57 AD3d 35.

Motion by the Innocence Project for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN ACEVEDO, Appellant.

Submitted July 27, 2009; decided August 27, 2009

Reported below, 61 AD3d 692.

Motion for assignment of counsel granted and David L. Steinberg, Esq. care of Law Offices of Mickey A. Steiman, 4419 Albany Post Road, Hyde Park, New York 12538 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MAZIN ASSI, Appellant.

Submitted July 13, 2009; decided August 27, 2009

Reported below, 63 AD3d 19.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent, v DANIEL J. BALLMAN, Respondent-Appellant.

Submitted August 3, 2009; decided August 27, 2009

Reported below, 64 AD3d 9.

Motion for assignment of counsel granted and Shirley A. Gorman, Esq., 12 East Bank Street, Albion, New York 14411 assigned as counsel to the respondent-appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES F. BRUNO, Appellant.

Submitted August 17, 2009; decided August 27, 2009

Reported below, 63 AD3d 1297.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v LYNETTE CABAN, Respondent.

Submitted July 27, 2009; decided August 27, 2009

Reported below, 51 AD3d 455.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TEOFILO DIAZ, Appellant.

Submitted August 24, 2009; decided August 27, 2009

Reported below, 62 AD3d 157.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES DREYDEN, Appellant.

Submitted August 17, 2009; decided August 27, 2009

Reported below, 23 Misc 3d 34.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JERRY FRANCOIS, Appellant.

Submitted August 24, 2009; decided August 27, 2009

Reported below, 61 AD3d 524.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TREVOR FREDERICK, Appellant.

Submitted August 24, 2009; decided August 27, 2009

Reported below, 62 AD3d 612.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TARA GRAVINO, Appellant.

Submitted August 17, 2009; decided August 27, 2009

Reported below, 62 AD3d 1259.

Motion for assignment of counsel granted and Kathleen P. Reardon, Esq., 40 Humboldt Street, Rochester, New York 14609 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAUL IZAGUIRRE, Appellant.

Submitted July 16, 2009; decided August 27, 2009

Reported below, 51 AD3d 946.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DORITA JACKSON, Appellant.

Submitted July 13, 2009; decided August 27, 2009

Reported below, 59 AD3d 268.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TERRANCE JOHNSON, Appellant.

Submitted June 29, 2009; decided August 27, 2009

Reported below, 60 AD3d 1396.

Motion for assignment of counsel granted and David C. Schopp, Esq., Legal Aid Bureau of Buffalo, 237 Main Street, Suite 1602, Buffalo, New York 14203 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BERNARDO MARTINAJ, Appellant.

Submitted July 27, 2009; decided August 27, 2009

Reported below, 56 AD3d 349.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NORMAN McBRIDE, Appellant.

Submitted July 6, 2009; decided August 27, 2009

Reported below, 59 AD3d 151.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SAMUEL McLEAN, Appellant.

Submitted August 24, 2009; decided August 27, 2009

Reported below, 59 AD3d 861.

Motion for assignment of counsel granted and Danielle Neroni Reilly, Esq. care of Law Offices of Danielle Neroni, P.O. Box 8446, Albany, New York 12208 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEZINE MURRAY, Appellant.

Submitted June 29, 2009; decided August 27, 2009

Reported below, 57 AD3d 921.

Motion for assignment of counsel granted and Mark Diamond, Esq., Box 287356, Yorkville Station, New York, NY 10128 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NAYSHAWN PERKINS, Appellant.

Submitted August 24, 2009; decided August 27, 2009

Reported below, 61 AD3d 780.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALEX RIVERA, Appellant.

Submitted June 29, 2009; decided August 27, 2009

Reported below, 60 AD3d 788.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDWIN RODRIGUEZ, Appellant.

Submitted August 17, 2009; decided August 27, 2009

Reported below, 60 AD3d 452.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RANCE P. SCULLY, Appellant.

Submitted August 10, 2009; decided August 27, 2009

Reported below, 61 AD3d 1364.

Motion for assignment of counsel granted and Frank J. Nebush, Jr., Esq., Oneida County Public Defender, Union Station, 321 Main Street, Utica, New York 13501 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARL SQUITIERI, Appellant.

Submitted August 17, 2009; decided August 27, 2009

Reported below, 60 AD3d 1208.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN THOMAS, Appellant.

Submitted August 10, 2009; decided August 27, 2009

Reported below, 62 AD3d 530.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DESIRIE WILSON, Appellant.

Submitted July 6, 2009; decided August 27, 2009

Reported below, 59 AD3d 153.

Motion for assignment of counsel denied.

AMY L. ROBERTS et al., on Behalf of Themselves and All Others Similarly Situated, Respondents, v TISHMAN SPEYER PROPERTIES, L.P., et al., Appellants.

Submitted July 20, 2009; decided August 27, 2009

Reported below, 62 AD3d 71.

Motion by the Legal Aid Society for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

AMY L. ROBERTS et al., on Behalf of Themselves and All Others Similarly Situated, Respondents, v TISHMAN SPEYER PROPERTIES, L.P., et al., Appellants.

Submitted August 3, 2009; decided August 27, 2009

Reported below, 62 AD3d 71.

Motion by Real Estate Board of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

AMY L. ROBERTS et al., on Behalf of Themselves and All Others Similarly Situated, Respondents, v TISHMAN SPEYER PROPERTIES, L.P., et al., Appellants.

Submitted August 3, 2009; decided August 27, 2009

Reported below, 62 AD3d 71.

Motion by New York State Tenants and Neighbors Coalition, Inc. et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

AMY L. ROBERTS et al., on Behalf of Themselves and All Others Similarly Situated, Respondents, v TISHMAN SPEYER PROPERTIES, L.P., et al., Appellants.

Submitted August 3, 2009; decided August 27, 2009

Reported below, 62 AD3d 71.

Motion by Community Housing Improvement Program of New York Inc. et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

AMY L. ROBERTS et al., on Behalf of Themselves and All Others Similarly Situated, Respondents, v TISHMAN SPEYER PROPERTIES, L.P., et al., Appellants.

Submitted August 3, 2009; decided August 27, 2009

Reported below, 62 AD3d 71.

Motion by New York City Council Members Maria del Carmen Arroyo et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

AMY L. ROBERTS et al., on Behalf of Themselves and All Others Similarly Situated, Respondents, v TISHMAN SPEYER PROPERTIES, L.P., et al., Appellants.

Submitted August 3, 2009; decided August 27, 2009

Reported below, 62 AD3d 71.

Motion by Rent Stabilization Association of New York City, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as

filed. Two copies of the brief must be served and 24 copies filed within seven days.

AMY L. ROBERTS et al., on Behalf of Themselves and All Others Similarly Situated, Respondents, v TISHMAN SPEYER PROPERTIES, L.P., et al., Appellants.

Submitted August 3, 2009; decided August 27, 2009

Reported below, 62 AD3d 71.

Motion by Office of the Manhattan Borough President for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

AMY L. ROBERTS et al., on Behalf of Themselves and All Others Similarly Situated, Respondents, v TISHMAN SPEYER PROPERTIES, L.P., et al., Appellants.

Submitted August 10, 2009; decided August 27, 2009

Reported below, 62 AD3d 71.

Motion by Urban Justice Center for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

AMY L. ROBERTS et al., on Behalf of Themselves and All Others Similarly Situated, Respondents, v TISHMAN SPEYER PROPERTIES, L.P., et al., Appellants.

Submitted August 3, 2009; decided August 27, 2009

Reported below, 62 AD3d 71.

Motion by Mitchell-Lama Residents Coalition for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and 24 copies filed within seven days.

In the Matter of SAVE THE PINE BUSH, INC., et al., Respondents,
v COMMON COUNCIL OF THE CITY OF ALBANY, Appellant, et
al., Respondent.

Submitted August 3, 2009; decided August 27, 2009

Reported below, 56 AD3d 32.

Motion by Sierra Club Atlantic Chapter et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and 24 copies filed within seven days.

In the Matter of TRANSITIONAL SERVICES OF NEW YORK FOR LONG
ISLAND, INC., Respondent-Appellant, v NEW YORK STATE OF-
FICE OF MENTAL HEALTH et al., Appellants-Respondents.

Submitted August 3, 2009; decided August 27, 2009

Reported below, 44 AD3d 673.

Motion by Association for Community Living for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

TRUST FOR THE CERTIFICATE HOLDERS OF THE MERRILL LYNCH
MORTGAGE INVESTORS, INC. MORTGAGE PASS-THROUGH CER-
TIFICATES, SERIES 1999-C1, by and through ORIX CAPITAL
MARKETS, LLC as Master Servicer and Special Servicer, Ap-
pellant, v LOVE FUNDING CORPORATION, Respondent.

Submitted August 3, 2009; decided August 27, 2009

Motion by Loan Syndications & Trading Association, Inc. for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed.

TRUST FOR THE CERTIFICATE HOLDERS OF THE MERRILL LYNCH
MORTGAGE INVESTORS, INC. MORTGAGE PASS-THROUGH CER-
TIFICATES, SERIES 1999-C1, by and through ORIX CAPITAL
MARKETS, LLC as Master Servicer and Special Servicer, Ap-
pellant, v LOVE FUNDING CORPORATION, Respondent.

Submitted August 3, 2009; decided August 27, 2009

Motion by Northern Manhattan Improvement Corporation et al. for leave to appear amici curiae on consideration of the certi-

fied question herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(August 1, 2009 through August 31, 2009)

People v Acevedo (Benito)	1st Dept: 62 AD3d 464 (NY)	denied 8/12/09 (Lippman, Ch.J.)
People v Acevedo (Clenio)	1st Dept: 60 AD3d 476 (NY)	denied 8/11/09 (Read, J.)
People v Adams	4th Dept: 61 AD3d 1419 (Onondaga)	denied 8/11/09 (Read, J.)
People v Afrika	4th Dept: 63 AD3d 1587 (Monroe)	denied 8/31/09 (Lippman, Ch.J.)
People v Ahmed	2d Dept: 62 AD3d 895 (Kings)	denied 8/20/09 (Pigott, J.)
People v Albritton	2d Dept: 63 AD3d 749 (Kings)	denied 8/7/09 (Pigott, J.)
People v Allen	4th Dept: 60 AD3d 1370 (Monroe)	denied 8/11/09 (Read, J.)
People v Alston (Jonah)	2d Dept: 62 AD3d 806 (Richmond)	denied 8/7/09 (Pigott, J.)
People v Alston (Jonah)	2d Dept: 62 AD3d 807 (Richmond)	denied 8/7/09 (Pigott, J.)
People v Andrews	4th Dept: 62 AD3d 1237 (Oneida)	denied 8/7/09 (Pigott, J.)
People v Appleton	4th Dept: 60 AD3d 1384 (Erie)	denied 8/11/09 (Read, J.)
People v Asante	App Div, 3d Dept: 2008 NY Slip Op 90974(U) (Rensselaer)	dismissed 8/11/09 (Read, J.)
People v Austin	1st Dept: 63 AD3d 490 (NY)	denied 8/17/09 (Ciparick, J.)
People v Bam Bam	App Div, 3d Dept: 2009 NY Slip Op 68554(U) (Sullivan)	denied 8/11/09 (Read, J.)
People v Banks	2d Dept: 62 AD3d 720 (Queens)	denied 8/12/09 (Read, J.)
People v Banner	1st Dept: 61 AD3d 592 (Bronx)	denied 8/12/09 (Read, J.)
People v Baptiste	App Div, 2d Dept: 2009 NY Slip Op 69838(U) (Rockland)	dismissed 8/7/09 (Pigott, J.)
People v Barton	4th Dept: 63 AD3d 1595 (Oneida)	denied 8/7/09 (Grafteo, J.)

People v Beckingham	3d Dept: 57 AD3d 1098 (Otsego)	denied 8/12/09 (Jones, J.)
People v Bentley	4th Dept: 63 AD3d 1624 (Niagara)	denied 8/14/09 (Grafteo, J.)
People v Bermudez	2d Dept: 63 AD3d 956 (Queens)	denied 8/17/09 (Ciparick, J.)
People v Blackwell	2d Dept: 62 AD3d 896 (Westchester)	denied 8/17/09 (Ciparick, J.)
People v Bohannon	2d Dept: 63 AD3d 956 (Suffolk)	denied 8/31/09 (Lippman, Ch.J.)
People v Bowler	1st Dept: 61 AD3d 546 (Bronx)	denied 8/7/09 (Pigott, J.)
People v Bowman (Edward)	App Div, 1st Dept: 2009 NY Slip Op 69745(U) (NY)	dismissed 8/4/09 (Pigott, J.)
People v Bowman (Gene)	3d Dept: 62 AD3d 1210 (Albany)	denied 8/31/09 (Lippman, Ch.J.)
People v Bridgewater	App Div, 1st Dept: 2009 NY Slip Op 74837(U) (Bronx)	dismissed 8/6/09 (Jones, J.)
People v Brown (Maurice)	3d Dept: 62 AD3d 1089 (Albany)	denied 8/7/09 (Pigott, J.)
People v Brown (Ronald)	App Div, 3d Dept: 2009 NY Slip Op 72554(U) (Schenectady)	dismissed 8/7/09 (Grafteo, J.)
People v Brown (Ronald)	App Div, 3d Dept, 5/8/09 (Schenectady)	dismissed 8/7/09 (Grafteo, J.)
People v Burvick	2d Dept: 60 AD3d 689 (Nassau)	denied 8/17/09 (Ciparick, J.)
People v Bush	1st Dept: 60 AD3d 601 (NY)	denied 8/11/09 (Read, J.)
People v Bustamante	3d Dept: 62 AD3d 1209 (Columbia)	dismissed 8/7/09 (Grafteo, J.)
People v Cabatu	App Div, 2d Dept: 2009 NY Slip Op 77699(U) (Westchester)	dismissed 8/26/09 (Grafteo, J.)
People v Capehart	2d Dept: 61 AD3d 885 (Queens)	denied 8/12/09 (Read, J.)
People v Carrasquillo	4th Dept: 63 AD3d 1670 (Monroe)	denied 8/31/09 (Pigott, J.)
People v Carvalho	4th Dept: 60 AD3d 1394 (Erie)	denied 8/21/09 (Jones, J.)
People v Chan	1st Dept: 63 AD3d 519 (NY)	denied 8/17/09 (Ciparick, J.)
People v Cheeba	3d Dept: 62 AD3d 1089 (Albany)	denied 8/7/09 (Pigott, J.)
People v Cintron	3d Dept: 62 AD3d 1157 (Ulster)	denied 8/4/09 (Smith, J.)
People v Closure (Curtis)	4th Dept: 60 AD3d 1381 (Monroe)	denied 8/12/09 (Jones, J.) (Appeal No. 1)
People v Closure (Curtis)	4th Dept: 60 AD3d 1381 (Monroe)	denied 8/12/09 (Jones, J.) (Appeal No. 2)

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People v Coleman	2d Dept: 62 AD3d 810 (Kings)	denied 8/18/09 (Grafteo, J.)
People v Coles	2d Dept: 62 AD3d 1022 (Kings)	denied 8/11/09 (Smith, J.)
People v Colon	2d Dept: 61 AD3d 772 (Kings)	denied 8/18/09 (Smith, J.)
People v Coronel	1st Dept: 64 AD3d 419 (NY)	denied 8/31/09 (Grafteo, J.)
People v Correa	1st Dept: 62 AD3d 406 (NY)	denied 8/7/09 (Pigott, J.)
People v Cotto	1st Dept: 62 AD3d 464 (NY)	denied 8/10/09 (Lippman, Ch.J.)
People v Crawford (Flexton)	2d Dept: 61 AD3d 773 (Kings)	denied 8/7/09 (Pigott, J.)
People v Crawford (Flexton)	2d Dept: 61 AD3d 774 (Kings)	denied 8/7/09 (Pigott, J.)
People v Crawford (Timothy)	1st Dept: 61 AD3d 566 (Bronx)	denied 8/13/09 (Pigott, J.)
People v Cruz	4th Dept: 57 AD3d 1453 (Monroe)	granted 8/6/09 (Jones, J.)
People v Daley	App Term, 1st Dept: 23 Misc 3d 145(A) (NY)	denied 8/20/09 (Pigott, J.)
People v Davis	2d Dept: 63 AD3d 755 (Kings)	denied 8/11/09 (Smith, J.)
People v Dean	1st Dept: 63 AD3d 628 (NY)	denied 8/31/09 (Grafteo, J.)
People v DeGrijze	App Div, 2d Dept: 2009 NY Slip Op 73288(U) (Queens)	dismissed 8/4/09 (Pigott, J.)
People v DeJesus	App Div, 1st Dept: 2009 NY Slip Op 74840(U) (NY)	dismissed 8/11/09 (Smith, J.)
People v Dennis	2d Dept: 62 AD3d 898 (Suffolk)	denied 8/12/09 (Read, J.)
People v Dixon	3d Dept: 62 AD3d 1214 (Washington)	denied 8/4/09 (Smith, J.)
People v Dunham	4th Dept: 60 AD3d 1438 (Monroe)	denied 8/11/09 (Read, J.)
People v Duran de la Rosa	1st Dept: 60 AD3d 484 (NY)	denied 8/12/09 (Jones, J.)
People v Epps	App Div, 4th Dept, 5/22/09 (Erie)	dismissed 8/10/09 (Read, J.)
People v Eugenio	1st Dept: 60 AD3d 580 (NY)	denied 8/19/09 (Jones, J.)
People v Fairley	3d Dept: 63 AD3d 1288 (Chemung)	denied 8/18/09 (Smith, J.)
People v Fall	County Ct, 4/20/09 (Ulster)	denied 8/31/09 (Lippman, Ch.J.)
People v Fecu	2d Dept: 61 AD3d 991 (Kings)	denied 8/19/09 (Jones, J.)

People v Fernandez	2d Dept: 61 AD3d 891 (Rockland)	denied 8/19/09 (Jones, J.)
People v Figueroa	1st Dept: 63 AD3d 491 (NY)	denied 8/31/09 (Pigott, J.)
People v Finn	2d Dept: 63 AD3d 755 (Orange)	denied 8/31/09 (Lippman, Ch.J.)
People v Floyd	4th Dept: 61 AD3d 1381 (Monroe)	denied 8/12/09 (Read, J.)
People v Frazier	1st Dept: 58 AD3d 468 (NY)	granted 8/11/09 (Read, J.)
People v Gallo	App Div, 2d Dept: 2009 NY Slip Op 74376(U) (Westchester)	dismissed 8/7/09 (Smith, J.)
People v Garbarini	4th Dept: 64 AD3d 1179 (Cayuga)	denied 8/18/09 (Grafteo, J.)
People v Garrett	2d Dept: 62 AD3d 899 (Kings)	denied 8/12/09 (Read, J.)
People v Garrido-Valdez	4th Dept: 63 AD3d 1670 (Monroe)	denied 8/18/09 (Grafteo, J.)
People v George	3d Dept: 62 AD3d 1169 (Schoharie)	denied 8/17/09 (Ciparick, J.)
People v Gonzalez	1st Dept: 61 AD3d 477 (Bronx)	denied 8/11/09 (Read, J.)
People v Gorrell	3d Dept: 63 AD3d 1381 (Broome)	denied 8/18/09 (Grafteo, J.)
People v Grandin	4th Dept: 63 AD3d 1604 (Niagara)	denied 8/13/09 (Pigott, J.)
People v Greathouse	3d Dept: 62 AD3d 1212 (Saratoga)	denied 8/4/09 (Smith, J.)
People v Green	2d Dept: 62 AD3d 1024 (Queens)	denied 8/20/09 (Pigott, J.)
People v Gren	2d Dept: 61 AD3d 991 (Queens)	denied 8/11/09 (Smith, J.)
People v Groover	4th Dept: 61 AD3d 1335 (Onondaga)	denied 8/11/09 (Read, J.)
People v Guance	1st Dept: 61 AD3d 552 (NY)	denied 8/21/09 (Jones, J.)
People v Hall	App Div, 1st Dept: 2009 NY Slip Op 66944(U) (NY)	denied reconsideration 8/18/09 (Smith, J.)
People v Hankerson	4th Dept: 61 AD3d 1424 (Monroe)	denied 8/7/09 (Pigott, J.)
People v Hardy	1st Dept: 61 AD3d 616 (NY)	denied 8/12/09 (Jones, J.)
People v Harris	4th Dept: 63 AD3d 1653 (Erie)	denied 8/18/09 (Smith, J.)
People v Hassell	1st Dept: 61 AD3d 484 (NY)	denied 8/18/09 (Grafteo, J.)
People v Hayes (George)	1st Dept: 61 AD3d 432 (NY)	denied 8/12/09 (Jones, J.)

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People v Hayes (Marcus)	2d Dept: 61 AD3d 992 (Queens)	denied 8/7/09 (Pigott, J.)
People v Heredia	1st Dept: 62 AD3d 615 (Bronx)	denied 8/13/09 (Pigott, J.)
People v Herion	2d Dept: 61 AD3d 700 (Kings)	denied 8/12/09 (Jones, J.)
People v Hernandez (Michael)	4th Dept: 63 AD3d 1615 (Erie)	denied 8/31/09 (Pigott, J.)
People v Hernandez (Shana)	3d Dept: 62 AD3d 1095 (Tompkins)	denied 8/7/09 (Pigott, J.)
People v Hill	4th Dept: 64 AD3d 1191 (Erie)	denied 8/18/09 (Grafteo, J.)
People v Holcomb (Shelby)	4th Dept: 61 AD3d 1356 (Erie)	denied 8/12/09 (Read, J.) (Appeal No. 1)
People v Holcomb (Shelby)	4th Dept: 61 AD3d 1356 (Erie)	denied 8/12/09 (Read, J.) (Appeal No. 2)
People v Holcomb (Shelby)	4th Dept: 61 AD3d 1357 (Erie)	denied 8/12/09 (Read, J.)
People v Holland	2d Dept: 63 AD3d 756 (Suffolk)	denied 8/31/09 (Lippman, Ch.J.)
People v Holmes	App Div, 4th Dept, 5/27/09 (Monroe)	dismissed 8/11/09 (Lippman, Ch.J.)
People v House	2d Dept: 61 AD3d 700 (Queens)	denied 8/12/09 (Read, J.)
People v Ivy	App Div, 4th Dept, 4/14/09 (Erie)	dismissed 8/10/09 (Read, J.)
People v Jackson (Bryant)	1st Dept: 61 AD3d 620 (NY)	denied 8/19/09 (Jones, J.)
People v Jackson (Clifton)	4th Dept: 64 AD3d 1248 (Jefferson)	denied 8/31/09 (Grafteo, J.)
People v Jackson (Constantine)	4th Dept: 63 AD3d 1671 (Onondaga)	dismissed 8/11/09 (Read, J.) (Case No. 225)
People v Jazz	4th Dept: 63 AD3d 1631 (Cayuga)	denied 8/12/09 (Read, J.)
People v Jeffries	1st Dept: 62 AD3d 530 (Bronx)	denied 8/17/09 (Ciparick, J.)
People v Johnson (Isaiah)	2d Dept: 61 AD3d 892 (Nassau)	denied 8/12/09 (Read, J.)
People v Johnson (Jabad)	4th Dept: 63 AD3d 1642 (Monroe)	denied 8/18/09 (Grafteo, J.)
People v Johnson (Shaun)	4th Dept: 63 AD3d 1587 (Erie)	denied 8/13/09 (Pigott, J.)
People v Johnson (Zavia)	1st Dept: 63 AD3d 470 (NY)	denied 8/18/09 (Grafteo, J.)
People v Jones (Brandon)	2d Dept: 62 AD3d 902 (Nassau)	denied 8/18/09 (Grafteo, J.)

People v Jones (Robert)	App Div, 3d Dept: 2009 NY Slip Op 68554(U) (Sullivan)	denied 8/11/09 (Read, J.)
People v Jones (Shannon)	4th Dept: 63 AD3d 1643 (Wayne)	denied 8/13/09 (Pigott, J.)
People v Ketteles	2d Dept: 62 AD3d 902 (Kings)	denied 8/20/09 (Pigott, J.)
People v Kettreles	2d Dept: 62 AD3d 902 (Kings)	denied 8/20/09 (Pigott, J.)
People v Killiebrew	2d Dept: 63 AD3d 1088 (Kings)	denied 8/18/09 (Smith, J.)
People v King	1st Dept: 61 AD3d 560 (NY)	denied 8/7/09 (Pigott, J.)
People v Kirsch	4th Dept: 61 AD3d 1438 (Erie)	denied 8/3/09 (Lippman, Ch.J.)
People v Klem	4th Dept: 60 AD3d 1378 (Yates)	denied 8/19/09 (Jones, J.)
People v Lago	2d Dept: 60 AD3d 784 (Suffolk)	denied 8/11/09 (Read, J.)
People v Lando	4th Dept: 61 AD3d 1389 (Onondaga)	denied 8/4/09 (Pigott, J.)
People v Lanos	4th Dept: 63 AD3d 1625 (Monroe)	denied 8/20/09 (Smith, J.)
People v LaPetina	App Div, 2d Dept: 2009 NY Slip Op 77413(U) (Queens)	dismissed 8/19/09 (Jones, J.)
People v Latif	2d Dept: 61 AD3d 997 (Suffolk)	denied 8/12/09 (Jones, J.)
People v Lattimore	1st Dept: 63 AD3d 521 (NY)	denied 8/11/09 (Smith, J.)
People v Lee	4th Dept: 59 AD3d 996 (Oneida)	denied 8/21/09 (Jones, J.)
People v Leon	2d Dept: 61 AD3d 776 (Kings)	denied 8/5/09 (Pigott, J.)
People v Lovallo	App Term, 2d Dept: 23 Misc 3d 138(A) (Westchester)	denied 8/11/09 (Lippman, Ch.J.)
People v Luck (David)	App Div, 3d Dept: 2009 NY Slip Op 67742(U) (Greene)	dismissed 8/18/09 (Pigott, J.)
People v Luck (David)	App Div, 3d Dept: 2009 NY Slip Op 71873(U) (Greene)	dismissed 8/18/09 (Pigott, J.)
People v Lynch	1st Dept: 63 AD3d 490 (NY)	denied 8/4/09 (Smith, J.)
People v MacDonald	4th Dept: 63 AD3d 1520 (Onondaga)	denied 8/10/09 (Lippman, Ch.J.)
People v Manrique	1st Dept: 62 AD3d 617 (NY)	denied 8/20/09 (Pigott, J.)
People v Massey	4th Dept: 61 AD3d 1433 (Erie)	denied 8/11/09 (Read, J.)
People v Mazzocchi	4th Dept: 64 AD3d 1194 (Ontario)	denied 8/7/09 (Grafteo, J.)

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People v McClain	1st Dept: 61 AD3d 416 (NY)	denied 8/12/09 (Jones, J.)
People v McCray	2d Dept: 61 AD3d 999 (Kings)	denied 8/12/09 (Read, J.)
People v McCullen	4th Dept: 63 AD3d 1708 (Erie)	denied 8/17/09 (Ciparick, J.)
People v McElhearn	3d Dept: 56 AD3d 954 (St. Lawrence)	denied 8/18/09 (Grafteo, J.)
People v McGill	App Div, 1st Dept: 2009 NY Slip Op 63921(U) (NY)	denied reconsideration 8/7/09 (Pigott, J.)
People v McKinnon	1st Dept: 63 AD3d 426 (Bronx)	granted 8/12/09 (Lippman, Ch.J.)
People v McLaren	1st Dept: 59 AD3d 280 (NY)	dismissed 8/12/09 (Jones, J.)
People v McNeely	1st Dept: 62 AD3d 533 (NY)	denied 8/12/09 (Read, J.)
People v Medina	3d Dept: 62 AD3d 1098 (Saratoga)	denied 8/17/09 (Ciparick, J.)
People v Mejias	1st Dept: 63 AD3d 526 (NY)	denied 8/14/09 (Grafteo, J.)
People v Mitchell	4th Dept: 61 AD3d 1396 (Monroe)	denied 8/7/09 (Pigott, J.)
People v Morgan (Earl)	2d Dept: 61 AD3d 895 (Kings)	denied 8/12/09 (Read, J.)
People v Morgan (Reynaldo)	2d Dept: 64 AD3d 667 (Kings)	denied 8/31/09 (Grafteo, J.)
People v Morrissey	2d Dept: 62 AD3d 912 (Orange)	denied 8/4/09 (Smith, J.)
People v Moye	1st Dept: 63 AD3d 481 (NY)	denied 8/18/09 (Grafteo, J.)
People v Muhammed	1st Dept: 63 AD3d 617 (NY)	denied 8/31/09 (Pigott, J.)
People v Mujahid	1st Dept: 63 AD3d 560 (NY)	denied 8/20/09 (Smith, J.)
People v Mullins	App Div, 3d Dept: 2009 NY Slip Op 70487(U) (Rensselaer)	denied 8/7/09 (Pigott, J.)
People v Murray	1st Dept: 60 AD3d 580 (NY)	denied 8/12/09 (Jones, J.)
People v Nelson	1st Dept: 63 AD3d 563 (NY)	denied 8/20/09 (Pigott, J.)
People v Nichols	1st Dept: 62 AD3d 413 (Bronx)	denied 8/13/09 (Pigott, J.)
People v Norris	2d Dept: 34 AD3d 700 (Kings)	denied 8/12/09 (Read, J.)
People v Nunez	App Div, 1st Dept: 2009 NY Slip Op 74837(U) (Bronx)	dismissed 8/6/09 (Jones, J.)
People v Odom	2d Dept: 61 AD3d 896 (Queens)	denied 8/21/09 (Jones, J.)

People v Ortiz (Michael)	2d Dept: 61 AD3d 1003 (Kings)	denied 8/12/09 (Read, J.)
People v Ortiz (Miguel)	1st Dept: 63 AD3d 613 (NY)	denied 8/31/09 (Grafteo, J.)
People v Ortiz (Tracy)	2d Dept: 61 AD3d 779 (Kings)	denied 8/7/09 (Pigott, J.)
People v Osborne	4th Dept: 63 AD3d 1707 (Chautauqua)	denied 8/12/09 (Smith, J.)
People v Owens	1st Dept: 61 AD3d 416 (NY)	denied 8/12/09 (Jones, J.)
People v Paige	4th Dept: 63 AD3d 1608 (Erie)	denied 8/12/09 (Smith, J.)
People v Parker	1st Dept: 61 AD3d 439 (NY)	denied 8/7/09 (Pigott, J.)
People v Paulino	App Div, 1st Dept: 2008 NY Slip Op 78316(U) (Bronx)	denied 8/13/09 (Pigott, J.)
People v Pelkey	3d Dept: 63 AD3d 1188 (Clinton)	denied 8/13/09 (Pigott, J.)
People v Perkins (Charles)	3d Dept: 62 AD3d 1160 (Schenectady)	denied 8/20/09 (Pigott, J.)
People v Perkins (Nayshawn)	2d Dept: 61 AD3d 780 (Kings)	granted 8/3/09 (Pigott, J.)
People v Perkins (Shawn)	3d Dept: 62 AD3d 1160 (Schenectady)	denied 8/20/09 (Pigott, J.)
People v Pickett	1st Dept: 63 AD3d 616 (NY)	denied 8/18/09 (Grafteo, J.)
People v Pilorge	2d Dept: 61 AD3d 782 (Nassau)	denied 8/13/09 (Pigott, J.)
People v Popal (Farid)	2d Dept: 62 AD3d 912 (Queens)	denied 8/7/09 (Pigott, J.)
People v Popal (John)	2d Dept: 62 AD3d 912 (Queens)	denied 8/7/09 (Pigott, J.)
People v Ramirez	App Div, 2d Dept: 2009 NY Slip Op 76829(U) (Westchester)	dismissed 8/31/09 (Pigott, J.)
People v Ramos	2d Dept: 61 AD3d 783 (Queens)	granted 8/19/09 (Lippman, Ch.J.)
People v Reyes	1st Dept: 62 AD3d 570 (NY)	denied 8/21/09 (Grafteo, J.)
People v Rhymes	4th Dept: 61 AD3d 1438 (Monroe)	denied 8/11/09 (Read, J.)
People v Rincon	1st Dept: 62 AD3d 574 (NY)	denied 8/7/09 (Pigott, J.)
People v Roberson	2d Dept: 61 AD3d 898 (Queens)	denied 8/11/09 (Read, J.)
People v Rodriguez (Daniel)	1st Dept: 62 AD3d 460 (Bronx)	denied 8/20/09 (Pigott, J.)
People v Rodriguez (Luis)	App Div, 1st Dept: 2008 NY Slip Op 78316(U) (Bronx)	denied 8/13/09 (Pigott, J.)
People v Rodriguez (Rafael)	2d Dept: 62 AD3d 728 (Rockland)	denied 8/13/09 (Pigott, J.)

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People v Rodriquez	4th Dept: 60 AD3d 1439 (Oneida)	denied 8/12/09 (Jones, J.)
People v Rogers	4th Dept: 63 AD3d 1631 (Cayuga)	denied 8/12/09 (Read, J.)
People v Rosado (Ricardo)	App Div, 4th Dept: 2008 NY Slip Op 75201(U) (Oneida)	dismissed 8/31/09 (Pigott, J.)
People v Rosado (Ricardo)	App Div, 4th Dept, 11/19/08 (Oneida)	dismissed 8/31/09 (Pigott, J.)
People v Rosado (Steve)	2d Dept: 54 AD3d 351 (Queens)	denied 8/12/09 (Lippman, Ch.J.)
People v Sanchez	App Div, 2d Dept: 2009 NY Slip Op 72047(U) (Kings)	dismissed 8/4/09 (Pigott, J.)
People v Sanders	4th Dept: 61 AD3d 1409 (Monroe)	denied 8/7/09 (Pigott, J.)
People v Santiago	1st Dept: 63 AD3d 520 (NY)	denied 8/14/09 (Grafteo, J.)
People v Santos	4th Dept: 60 AD3d 1360 (Monroe)	denied 8/11/09 (Read, J.)
People v Scission	4th Dept: 60 AD3d 1391 (Erie)	denied reconsideration 8/12/09 (Smith, J.)
People v Shaheim	2d Dept: 63 AD3d 1181 (Kings)	denied 8/26/09 (Grafteo, J.)
People v Shakespeare	2d Dept: 63 AD3d 861 (Kings)	denied 8/31/09 (Grafteo, J.)
People v Simmons	2d Dept: 60 AD3d 1093 (Kings)	denied reconsideration 8/18/09 (Grafteo, J.)
People v Slater	4th Dept: 61 AD3d 1328 (Ontario)	denied 8/12/09 (Jones, J.)
People v Smith (Anthony)	2d Dept: 54 AD3d 974 (Suffolk)	denied 8/12/09 (Jones, J.)
People v Smith (Charles)	2d Dept: 61 AD3d 1005 (Westchester)	dismissed 8/18/09 (Grafteo, J.)
People v Smith (Hockeem)	1st Dept: 63 AD3d 510 (NY)	denied 8/18/09 (Grafteo, J.)
People v Smith (Jayson)	1st Dept: 63 AD3d 508 (NY)	denied 8/31/09 (Pigott, J.)
People v Smith (Lavonne)	2d Dept: 61 AD3d 708 (Kings)	denied 8/7/09 (Pigott, J.)
People v Smith (Thomas)	1st Dept: 62 AD3d 422 (NY)	denied 8/7/09 (Pigott, J.)
People v Stewartson	2d Dept: 63 AD3d 966 (Kings)	denied 8/18/09 (Grafteo, J.)
People v Sturgis	4th Dept: 63 AD3d 1650 (Monroe)	denied 8/17/09 (Ciparick, J.)

People v Tabb	4th Dept: 59 AD3d 1080 (Erie)	granted 8/12/09 (Jones, J.)
People v Tabbott	3d Dept: 61 AD3d 1183 (Greene)	denied 8/21/09 (Jones, J.)
People v Tavaréz	1st Dept: 62 AD3d 502 (NY)	denied 8/12/09 (Smith, J.)
People v Taylor (Pernorris)	App Term, 2d Dept: 22 Misc 3d 138(A) (Nassau)	denied 8/19/09 (Jones, J.)
People v Taylor (Shahana)	1st Dept: 61 AD3d 537 (NY)	denied 8/7/09 (Pigott, J.)
People v Tenesaca	2d Dept: 61 AD3d 1006 (Queens)	denied 8/11/09 (Read, J.)
People v Terry	2d Dept: 64 AD3d 669 (Suffolk)	denied 8/26/09 (Grafteo, J.)
People v Thomas	App Div, 2d Dept: 2009 NY Slip Op 66668(U) (Queens)	denied 8/14/09 (Pigott, J.)
People v Thompson	2d Dept: 62 AD3d 817 (Queens)	denied 8/3/09 (Lippman, Ch.J.)
People v Tillery	App Div, 3d Dept: 2009 NY Slip Op 74915(U) (Albany)	dismissed 8/6/09 (Jones, J.)
People v Torres (Jason)	1st Dept: 61 AD3d 489 (NY)	denied reconsideration 8/18/09 (Grafteo, J.)
People v Torres (Phillip)	1st Dept: 60 AD3d 584 (NY)	denied 8/12/09 (Jones, J.)
People v Towndrow	3d Dept: 62 AD3d 1028 (Chenango)	denied 8/12/09 (Read, J.)
People v Turner	2d Dept: 60 AD3d 1095 (Queens)	denied 8/12/09 (Jones, J.)
People v Vail	App Div, 3d Dept: 2009 NY Slip Op 74914(U) (Broome)	denied 8/31/09 (Pigott, J.)
People v Vargas	3d Dept: 60 AD3d 1236 (Broome)	denied 8/17/09 (Ciparick, J.)
People v Veneziano	1st Dept: 62 AD3d 588 (NY)	denied 8/18/09 (Grafteo, J.)
People v Washington	1st Dept: 62 AD3d 408 (NY)	denied 8/19/09 (Jones, J.)
People v Watkins	4th Dept: 63 AD3d 1656 (Wayne)	denied 8/5/09 (Smith, J.)
People v Watson	1st Dept: 59 AD3d 286 (NY)	denied 8/19/09 (Jones, J.)
People v Weems	1st Dept: 61 AD3d 472 (NY)	denied 8/7/09 (Pigott, J.)
People v White (Jeremy)	4th Dept: 61 AD3d 1396 (Onondaga)	denied 8/7/09 (Pigott, J.)
People v White (Latasha)	2d Dept: 62 AD3d 916 (Orange)	denied 8/13/09 (Pigott, J.)
People v Whitley	2d Dept: 59 AD3d 746 (Westchester)	denied reconsideration 8/11/09 (Read, J.)

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People v Williams (Rahjeem)	1st Dept: 61 AD3d 470 (Bronx)	granted 8/13/09 (Pigott, J.)
People v Williams (Robert)	4th Dept: 61 AD3d 1383 (Monroe)	denied 8/11/09 (Lippman, Ch.J.)
People v Woods	4th Dept: 60 AD3d 1438 (Onondaga)	denied reconsideration 8/20/09 (Smith, J.)
People v Wright (Gerald)	App Div, 2d Dept: 2009 NY Slip Op 78275(U) (Kings)	dismissed 8/18/09 (Ciparick, J.)
People v Wright (Kirkland)	2d Dept: 62 AD3d 916 (Suffolk)	denied 8/12/09 (Read, J.)
People v Young	2d Dept: 61 AD3d 786 (Queens)	denied 8/7/09 (Pigott, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(August 1, 2009 through August 31, 2009)

People v Liggins	4th Dept: 64 AD3d 1213 (Oneida)	granted 8/13/09 (Carni, J.)
People v McDade	3d Dept: 64 AD3d 884 (Rensselaer)	granted 8/5/09 (Stein, J.)
People v Reome	4th Dept: 64 AD3d 1201 (Onondaga)	granted 8/13/09 (Hurlbutt, J.)

[914 NE2d 1005, 886 NYS2d 88]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JERMAR
McDANIEL, Appellant.

Decided September 1, 2009

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered September 9, 2008. The Appellate Division (1) affirmed a judgment of the Supreme Court, Bronx County (Robert G. Seewald, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree, and (2) affirmed an order of that court, which had denied defendant's CPL 440.10 motion to vacate the judgment.

People v McDaniel, 54 AD3d 577, affirmed.

* Includes only applications that were granted.

HEADNOTE**Crimes — Right to Counsel — Effective Representation**

Defendant's claim of ineffective assistance of counsel was meritless where defense counsel's decision not to seek dismissal of a robbery charge for insufficient evidence would not have resulted in a dismissal of that charge. Furthermore, the attorney's conduct did not consist of egregious and prejudicial error such that defendant did not receive a fair trial; rather, viewed in totality and as of the time of the representation, it revealed that the attorney provided meaningful representation.

APPEARANCES OF COUNSEL

Legal Aid Society, Criminal Appeals Bureau, New York City (Arthur H. Hopkirk and Steven Banks of counsel), for appellant.

Robert T. Johnson, District Attorney, Bronx (Kayonia L. Whetstone of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed.

Because defense counsel's decision not to seek dismissal of the robbery in the first degree charge for insufficient evidence would not have resulted in a dismissal of that charge (*see People v Lopez*, 73 NY2d 214, 219-220 [1989]; *People v Baskerville*, 60 NY2d 374, 380-381 [1983]), defendant's claim of ineffective assistance of counsel is meritless. Furthermore, the attorney's conduct did not consist of " 'egregious and prejudicial' error such that defendant did not receive a fair trial" (*People v Benvenuto*, 91 NY2d 708, 713 [1998], citing *People v Flores*, 84 NY2d 184, 188-189 [1994]), but rather "viewed in totality and as of the time of the representation, reveal[s] that the attorney provided meaningful representation" (*People v Baldi*, 54 NY2d 137, 147 [1981]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

VIRGINIA ALBIZU, Respondent, v JOSE DUVAL, Appellant.

Submitted May 26, 2009; decided September 1, 2009

Reported below, 57 AD3d 384.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CITIBANK, N.A., Respondent, v ANGST, INC., et al., Defendants,
and JOHN M. McNAMARA, Appellant.

Submitted June 1, 2009; decided September 1, 2009

Reported below, 61 AD3d 484.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see* Karger, Powers of the New York Court of Appeals § 4:11, at 83-85 [3d ed rev]).

DEBRA H., Appellant, v JANICE R., Respondent.

Submitted July 20, 2009; decided September 1, 2009

Reported below, 61 AD3d 460.

Motions for a stay of the Appellate Division order reversing Supreme Court's October 2, 2008 order granted to the extent of reinstating and permitting enforcement of so much of Supreme Court's order as allowed appellant Sunday visitation with the child.

DEBRA H., Appellant, v JANICE R., Respondent.

Submitted August 10, 2009; decided September 1, 2009

Reported below, 61 AD3d 460.

Motion by National Association of Social Workers et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed, and for leave to file a brief amici curiae on the appeal herein granted, and the brief is accepted as filed.

DEBRA H., Appellant, v JANICE R., Respondent.

Submitted August 17, 2009; decided September 1, 2009

Reported below, 61 AD3d 460.

Motion by Richard Allen et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed, and for leave to file a brief amici curiae on the appeal herein granted, three copies of the brief to be served and an original and 24 copies filed within 30 days.

DEBRA H., Appellant, v JANICE R., Respondent.

Submitted August 10, 2009; decided September 1, 2009

Reported below, 61 AD3d 460.

Motion by New York Civil Liberties Union et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

DEBRA H., Appellant, v JANICE R., Respondent.

Submitted August 10, 2009; decided September 1, 2009

Reported below, 61 AD3d 460.

Motion by Citizens' Committee for Children of New York et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed, and for leave to file a brief amici curiae on the appeal herein granted, three copies of the brief to be served and an original and 24 copies filed within 30 days.

DEBRA H., Appellant, v JANICE R., Respondent.

Submitted August 10, 2009; decided September 1, 2009

Reported below, 61 AD3d 460.

Motion by the New York State Bar Association for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed, and for leave to file a brief amicus curiae on the appeal herein granted, three copies of the brief to be served and an original and 24 copies filed within 30 days.

DEBRA H., Appellant, v JANICE R., Respondent.

Submitted August 10, 2009; decided September 1, 2009

Reported below, 61 AD3d 460.

Motion by the New York City Bar Association for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed, and for leave to file a brief amicus curiae on the appeal herein granted, three copies of the brief to be served and an original and 24 copies filed within 30 days.

In the Matter of ROBIE J. DRAKE, Appellant, v RICHARD C. KLOCH, SR., Acting Justice of the Supreme Court of the State of New York, Niagara County, et al., Respondents.

Submitted May 26, 2009; decided September 1, 2009

Reported below, 2009 NY Slip Op 69151(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of ANTHONY ETTARI, Respondent, v BRIAN FISCHER, as Commissioner of Correctional Services, et al., Appellants.

Submitted July 20, 2009; decided September 1, 2009

Reported below, 54 AD3d 460.

Motion to vacate this Court's June 25, 2009 dismissal order granted [*see* 12 NY3d 911 (2009)].

In the Matter of 47 AVE. B. EAST INC., Respondent, v NEW YORK STATE LIQUOR AUTHORITY, Appellant.

Submitted July 29, 2009; decided September 1, 2009

Reported below, 65 AD3d 33.

Motion to vacate stay granted.

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. HOWARD GLENN
BLAKE, Alleged to be LARRY WAYNE BARNETT, Appellant, v
GEORGE E. PATAKI, as Governor of the State of New York,
Respondent.

Submitted June 22, 2009; decided September 1, 2009

Reported below, 57 AD3d 583.

Motion to vacate this Court's June 2, 2009 dismissal order
granted [*see* 12 NY3d 911 (2009)].

KIRK SMITH, Appellant, v GARO ENTERPRISES, INC., et al.,
Defendants. CAROL RADIN et al., Nonparty Respondents.

Submitted June 1, 2009; decided September 1, 2009

Reported below, 60 AD3d 751.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

DONALD G. STRADER, Respondent, v JOHN J. ASHLEY, JR., et al.,
Appellants, et al., Defendant.

Submitted June 15, 2009; decided September 1, 2009

Reported below, 61 AD3d 1244.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

[915 NE2d 288, 886 NYS2d 363]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PETER
J. MALISZEWSKI, Appellant.

Decided September 3, 2009

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division
of the Supreme Court in the Fourth Judicial Department, from
an order of that Court, entered March 20, 2009. The Appellate

Division affirmed a resentence of the Oswego County Court (Walter W. Hafner, Jr., J.), imposed following defendant's conviction, upon his plea of guilty, of burglary in the third degree. The County Court had resentenced defendant to an indeterminate term of incarceration of 3 to 6 years and restitution.

People v Maliszewski, 60 AD3d 1435, affirmed.

HEADNOTE

Crimes — Sentence — Resentence

Where defendant pleaded guilty and was sentenced pursuant to a plea agreement the Appellate Division found in a prior order to be illegal, and he was offered the chance to withdraw his plea by the sentencing court but chose not to do so, the sentencing court was not required to offer defendant the option of a lesser sentence.

APPEARANCES OF COUNSEL

Davison Law Office, Canandaigua (*Mary P. Davison* of counsel), for appellant.

Donald H. Dodd, District Attorney, Oswego (*Michael G. Cianfarano* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant pleaded guilty to burglary and was sentenced pursuant to a plea agreement the Appellate Division found in a prior order to be illegal. He was offered the chance to withdraw his plea by the sentencing court, and chose not to do so. The sentencing court was not required to offer defendant the option of a lesser sentence, where plea withdrawal can put the defendant in the position he was in prior to admitting guilt (*compare People v Selikoff*, 35 NY2d 227 [1974], *with People v McConnell*, 49 NY2d 340 [1980]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

RUBY EMANUEL, Plaintiff, v SHERIDAN TRANSPORTATION CORP. et al., Defendants.

KENNETH HELLER, Appellant, v JACOBY & MEYERS, LLP, Respondent.

Submitted June 22, 2009; decided September 3, 2009

Reported below, 58 AD3d 583.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK by ANDREW M. CUOMO, Attorney General of the State of New York, Respondent, v COVENTRY FIRST LLC et al., Appellants.

Submitted August 10, 2009; decided September 3, 2009

Reported below, 52 AD3d 345.

Motion for reargument denied [*see* 13 NY3d 108 (2009)].

Chief Judge LIPPMAN taking no part.

SUPERIOR ICE RINK, INC., Respondent, v NESCON CONTRACTING CORP., Doing Business as A1 DISCOUNT PAINTING, et al., Defendants, and MERCHANTS MUTUAL MARINE INSURANCE COMPANY, Appellant.

Submitted June 15, 2009; decided September 3, 2009

Reported below, 52 AD3d 688.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MICHAEL YOVINO, Appellant, v NEW YORK CITY CIVIL SERVICE COMMISSION, Respondent.

Submitted June 15, 2009; decided September 3, 2009

Reported below, 2009 NY Slip Op 61617(U).

Motion for reargument of motion for leave to appeal denied [*see* 12 NY3d 813 (2009)].

[915 NE2d 1158, 886 NYS2d 862]

EDWARD KOEHL, Appellant, v S. MIRZA et al., Respondents.

Decided September 8, 2009

SUMMARY

REARGUMENT of an appeal from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered April 26, 2007. The Appellate Division affirmed an order of the Supreme Court, Clinton County (Patrick R. McGill, J.), which had granted defendants' motion to dismiss the complaint. Following the dismissal by the Court of Appeals of the original appeal on the ground that no substantial constitutional question was directly involved (9 NY3d 985 [2007]), the United States Supreme Court vacated the judgment and remanded (556 US —, 129 S Ct 2734 [2009]) to the Court of Appeals for further consideration in light of *Haywood v Drown* (556 US —, 129 S Ct 2108 [2009]).

Plaintiff inmate commenced this action seeking damages from employees of the Department of Correctional Services claiming that decisions they made in the context of their official duties were either negligent, in violation of his constitutional rights and/or in violation of 42 USC § 1983. The Appellate Division concluded that Supreme Court did not have subject matter jurisdiction and rejected plaintiff's argument that Correction Law § 24 violates the Supremacy Clause of the US Constitution.

See Koehl v Mirza, 39 AD3d 1092.

HEADNOTE

Constitutional Law — Supremacy Clause — Civil Actions in State Courts against Department of Correctional Services Personnel

In plaintiff inmate's action seeking damages from employees of the Department of Correctional Services, upon reargument following remand by the United States Supreme Court, a dismissal order issued by the Court of Appeals was vacated and the appeal was reinstated.

APPEARANCES OF COUNSEL

Edward Koehl, appellant pro se.

Andrew M. Cuomo, Attorney General, Albany (*Robert M. Goldfarb*, *Barbara D. Underwood* and *Andrea Oser* of counsel), for respondents.

OPINION OF THE COURT

Upon reargument, following remand by the Supreme Court of the United States, this Court's November 27, 2007 dismissal or-

der vacated and appeal reinstated (*see Koehl v Mirza*, 556 US —, 129 S Ct 2734 [2009]; *Haywood v Drown*, 556 US —, 129 S Ct 2108 [2009]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[915 NE2d 1158, 886 NYS2d 862]

KEITH HAYWOOD, Appellant, v CURTIS DROWN, Respondent. (Action No. 1.)

KEITH HAYWOOD, Appellant, v PAT SMITH et al., Respondents. (Action No. 2.)

Decided September 8, 2009

SUMMARY

REARGUMENT, in the two above-entitled actions, of appeals from two orders of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered December 22, 2006. The Appellate Division affirmed two orders of the Supreme Court, Wyoming County (Mark H. Dadd, J.), one as to each action, which had granted defendants' motion to dismiss the complaint and dismissed the complaint. Following the affirmances by the Court of Appeals upon the original appeals (9 NY3d 481 [2007]), the United States Supreme Court reversed and remanded the cases to the Court of Appeals (556 US —, 129 S Ct 2108 [2009]), concluding that Correction Law § 24, as applied to section 1983 claims, violates the Supremacy Clause.

Plaintiff inmate commenced these actions, predicated on 42 USC § 1983, seeking damages from employees of the Department of Correctional Services (DOCS) based on their alleged tortious conduct committed in violation of his federal and state constitutional rights.

The Appellate Division concluded that Correction Law § 24, which encompassed defendants' conduct, precluded plaintiff from suing DOCS employees in their personal capacity, and that Correction Law § 24 was not preempted by the Supremacy Clause of the United States Constitution (US Const, art VI, cl 2) and 42 USC § 1983.

Haywood v Drown, 35 AD3d 1290, reversed.

Haywood v Smith, 35 AD3d 1291, modified.

HEADNOTES

Constitutional Law — Supremacy Clause — Civil Actions in State Courts against Department of Correctional Services Personnel

1. In plaintiff inmate's action seeking damages from employees of the Department of Correctional Services, upon reargument following remand by the United States Supreme Court, an Appellate Division order, which concluded that Correction Law § 24 was not preempted by the Supremacy Clause of the United States Constitution (US Const, art VI, cl 2), was reversed, defendants' motion to dismiss was denied and the case was remitted to Supreme Court for further proceedings.

Constitutional Law — Supremacy Clause — Civil Actions in State Courts against Department of Correctional Services Personnel

2. In plaintiff inmate's action seeking damages from employees of the Department of Correctional Services, upon reargument following remand by the United States Supreme Court, an Appellate Division order, which concluded that Correction Law § 24 was not preempted by the Supremacy Clause of the United States Constitution (US Const, art VI, cl 2), was modified. The modification consisted of denying the motion to dismiss the cause of action predicated on 42 USC § 1983 and remitting to Supreme Court for further proceedings on that cause of action.

APPEARANCES OF COUNSEL

Dechert LLP, New York City (*Gary J. Mennitt* of counsel), for appellant.

Andrew M. Cuomo, Attorney General, Albany (*Robert M. Goldfarb*, *Barbara D. Underwood* and *Andrea Oser* of counsel), for respondents.

OPINION OF THE COURT

[1, 2] Upon reargument, following remand by the Supreme Court of the United States, order in *Haywood v Drown* reversed, with costs, motion to dismiss denied and case remitted to Supreme Court, Wyoming County, for further proceedings, and order in *Haywood v Smith* modified, without costs, by denying the motion to dismiss the cause of action predicated on 42 USC § 1983 and remitting to Supreme Court, Wyoming County, for further proceedings on that cause of action and, as so modified, affirmed (*see Haywood v Drown*, 556 US —, 129 S Ct 2108 [2009]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

ARTS4ALL, LTD., Appellant, et al., Plaintiff, v JUDITH L. HANCOCK, Respondent and Counterclaim Plaintiff-Respondent, et al., Additional Counterclaim Defendants.

Submitted July 6, 2009; decided September 8, 2009

Reported below, 54 AD3d 286.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 12 NY3d 846 (2009)].

Chief Judge LIPPMAN taking no part.

ARRELLO BARNES, Appellant, v STATE OF NEW YORK, Respondent.

Submitted July 6, 2009; decided September 8, 2009

Reported below, 2008 NY Slip Op 85094(U); 2009 NY Slip Op 63023(U).

Motion for reargument denied [*see* 11 NY3d 883 (2008)]. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge LIPPMAN taking no part.

SUSAN CAMBIZACA, Appellant, v NEW YORK CITY TRANSIT AUTHORITY, Respondent.

Submitted August 3, 2009; decided September 8, 2009

Reported below, 57 AD3d 701.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 12 NY3d 715 (2009)].

MARY ANN DiDOMENICO et al., Appellants, v LONG BEACH PLAZA CORP. et al., Respondents, et al., Defendants.

Submitted July 6, 2009; decided September 8, 2009

Reported below, 60 AD3d 615, 618.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

RUCHAMA GAMIEL, Appellant, v CURTIS & REISS-CURTIS, P.C., et al., Respondents. (And a Third-Party Action.)

Submitted July 13, 2009; decided September 8, 2009

Reported below, 60 AD3d 473.

Motion, insofar as it seeks leave to appeal from the March 10, 2009 Appellate Division order, dismissed as untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal from the Supreme Court judgment entered on the Appellate Division order, dismissed upon the ground that the judgment is not the final paper from which leave to appeal may be sought (*see* CPLR 5611). Motion for a stay dismissed as academic.

WENDY GOLDIN et al., Appellants, v ENGINEERS COUNTRY CLUB et al., Respondents.

Submitted June 22, 2009; decided September 8, 2009

Reported below, 54 AD3d 658.

Motion, insofar as it seeks leave to appeal against defendant Engineers Country Club, dismissed as untimely (*see* CPLR 5513 [b]); motion for leave to appeal otherwise denied.

ROBERT E. JUDGE, Appellant, v NEW YORK COLLEGE OF PROFESSIONAL HEALTH, Respondent.

Submitted June 15, 2009; decided September 8, 2009

Reported below, 2008 NY Slip Op 68025(U); 2008 NY Slip Op 82157(U); 2008 NY Slip Op 88405(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that it does not lie (*see* CPLR 5601). Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602). Motion for poor person relief dismissed as academic.

LEON R. KOZIOL, Appellant, v KELLY HAWSE KOZIOL, Respondent.

Decided September 8, 2009

Reported below, 60 AD3d 1433 (Appeal No. 1).

Appeal from order of the Appellate Division dismissing the appeal from an order of Supreme Court, among other things, denying appellant's motion for custody and suspension of his support obligations pending determination of the action, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution.

LEON R. KOZIOL, Appellant, v KELLY HAWSE KOZIOL, Respondent.

Decided September 8, 2009

Reported below, 60 AD3d 1435 (Appeal No. 2).

Appeal from order of the Appellate Division dismissing the appeal from a judgment of divorce, dismissed upon the ground that appellant is not a party aggrieved.

LEON R. KOZIOL, Appellant, v KELLY HAWSE KOZIOL, Respondent.

Decided September 8, 2009

Reported below, 60 AD3d 1435 (Appeal No. 3).

Appeal from order of the Appellate Division affirming so much of an order of Supreme Court as denied appellant's motion to amend the caption, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution.

LEON R. KOZIOL, Appellant, v KELLY HAWSE KOZIOL, Respondent.

Decided September 8, 2009

Reported below, 60 AD3d 1435 (Appeal No. 4).

Appeal from order of the Appellate Division affirming so much of an order of Supreme Court as denied appellant's postjudgment motion for a change in custody and/or parenting time dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution.

In the Matter of WILLIAM KYLE et al., Appellants, v GERALD
LEBOVITS et al., Respondents.

Submitted June 29, 2009; decided September 8, 2009

Reported below, 58 AD3d 521.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that dismissed the appeal from that portion of Supreme Court's order that imposed sanctions upon appellants' counsel, dismissed upon the ground that as to said part of the order appellants are not parties aggrieved within the meaning of CPLR 5511; motion for leave to appeal otherwise denied.

MAURICE OPARAJI, Appellant, v THE NEW YORK MORTGAGE COM-
PANY, LLC, Respondent.

Submitted July 13, 2009; decided September 8, 2009

Reported below, 55 AD3d 429.

Motion for reargument of motion for leave to appeal denied [see 12 NY3d 881 (2009)].

Chief Judge LIPPMAN taking no part.

In the Matter of VIRGINIA PARKHOUSE, Appellant, v SCOTT M.
STRINGER, as Borough President of Manhattan, et al., Re-
spondents.

Submitted July 20, 2009; decided September 8, 2009

Reported below, 55 AD3d 1.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [see 12 NY3d 660 (2009)].

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
REGINALD BELLOT, Appellant.

Submitted June 22, 2009; decided September 8, 2009

Reported below, 23 Misc 3d 138(A).

Motion for leave to appeal from the Appellate Term order dismissed upon the ground that the Court of Appeals does not

have jurisdiction to entertain the motion (*see* CPLR 5602). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JESUS CANO, Appellant.

Submitted July 6, 2009; decided September 8, 2009

Reported below, 54 AD3d 684.

Motion for reargument denied [*see* 12 NY3d 876 (2009)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE FUENTES, Appellant.

Submitted July 13, 2009; decided September 8, 2009

Reported below, 48 AD3d 479.

Motion for reargument denied [*see* 12 NY3d 259 (2009)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JAMES CURRY, Appellant, v JAMES CONWAY, Superintendent of Attica Correctional Facility, Respondent.

Submitted June 15, 2009; decided September 8, 2009

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3; CPLR 5602).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ALVIN FULTON JR., Appellant, v WILLIAM LAPE, as Superintendent of Cox-sackie Correctional Facility, Respondent.

Decided September 8, 2009

Reported below, 61 AD3d 1227.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.
